

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Olga Bentin	Team: Squad #04	CCRB Case #: 201804241	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 05/19/2018 12:00 AM, Sunday, 05/20/2018 8:14 AM, Tuesday, 06/12/2018 12:00 AM	Location of Incident: Over the phone; § 87(2)(b)	18 Mo. SOL 11/20/2019	Precinct: 67		
Date/Time CV Reported Sun, 05/20/2018 8:40 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 05/29/2018 10:52 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Ahmad Shaheed	14697	944291	067 PCT
2. SGT Jeanne Williams	02799	949801	067 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Julio Martinez	07078	958882	067 PCT
2. POF Makaida Sealy	06726	949649	067 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . POM Ahmad Shaheed	Abuse: On May 20, 2018, over the phone, Police Officer Ahmad Shaheed threatened § 87(2)(b) with the arrest of § 87(2)(b).	A . Unsubstantiated
B . SGT Jeanne Williams	Abuse: On June 12, 2018, at § 87(2)(b), in Brooklyn, Sergeant Jeanne Williams damaged § 87(2)(b)'s property.	B . Substantiated
C . SGT Jeanne Williams	Abuse: On June 12, 2018, Sergeant Jeanne Williams entered § 87(2)(b), in Brooklyn.	C . Substantiated
D . SGT Jeanne Williams	Abuse: On June 12, 2018, Sergeant Jeanne Williams searched § 87(2)(b) in Brooklyn.	D . Substantiated

Case Summary

On May 20, 2018, § 87(2)(b) contacted the IAB Command Center by phone and filed this complaint. On May 29, 2018, the complaint was received at the CCRB.

On May 19, 2018, at approximately 9 a.m., § 87(2)(b)'s ex-boyfriend, § 87(2)(b) and two officers, identified by the investigation as PO Ahmad Shaheed and PO Julio Martinez of the 67th Precinct, arrived at § 87(2)(b)'s apartment at § 87(2)(b), in Brooklyn. § 87(2)(b) pretended not to be home and eventually the officers left.

On May 20, 2018, at approximately 8:14 a.m., § 87(2)(b) spoke to PO Shaheed over the phone. PO Shaheed threatened to arrest her daughter, § 87(2)(b) for not opening the door to the police (**Allegation A: Abuse of Authority**, § 87(2)(g)).

On June 12, 2018, at 9:20 a.m., PO Makaida Sealy, PO Shaheed, and PO Martinez damaged § 87(2)(b)'s apartment door, then entered and searched her apartment, under the supervision of Sergeant Jeanne Williams (**Allegations B-D: Abuse of Authority**, § 87(2)(b)).

No arrests or summonses resulted from these incidents. There is no video footage from May 19, 2018 or May 20, 2018. On July 19, 2018, six BWC recordings of the incident on June 12, 2018, were obtained from IAB. The full videos can be viewed from Investigation Actions #89-94. Two SnagIt videos are embedded in the report and discussed in greater detail below.

Findings and Recommendations

Allegation (A) Abuse of Authority: On May 20, 2018, over the phone, Police Officer Ahmad Shaheed threatened § 87(2)(b) with the arrest of § 87(2)(b)

According to § 87(2)(b) (BR 01), she is the sole leaseholder of her apartment, § 87(2)(b) in Brooklyn, where she has § 87(2)(b) daughter, § 87(2)(b) and her § 87(2)(b)-old son, § 87(2)(b).

In early April of 2018, § 87(2)(b)'s boyfriend, § 87(2)(b) stayed with her temporarily. § 87(2)(b) did not pay rent or other compensation to § 87(2)(b). § 87(2)(b) installed Direct TV and had the bills, which were under his name, sent to § 87(2)(b)'s address, but did not otherwise receive mail there.

§ 87(2)(a), § 87(2)(b)

At some point between April 16 and April 18, 2018, § 87(2)(b) asked § 87(2)(b) to leave. § 87(2)(b) took his belongings and left. § 87(2)(b) had only lived at § 87(2)(b)'s apartment for two weeks at the time of his departure. § 87(2)(b) denied locking § 87(2)(b) out of the apartment or changing the locks. § 87(2)(b) never had his own set of keys to § 87(2)(b)'s apartment; when he wanted to come in, he would call § 87(2)(b).

Several days after § 87(2)(b) moved out, he called § 87(2)(b) and said he left property behind and wanted to come over to retrieve it. § 87(2)(b) told § 87(2)(b) that he had left nothing behind, asked him not to come, and ended the call. § 87(2)(b) ignored several calls from § 87(2)(b) in the following days. § 87(2)(b) also told § 87(2)(b) that § 87(2)(b) had come to the apartment with officers on multiple occasions when § 87(2)(b) was not present, and that § 87(2)(b) had pretended not to be home.

On May 19, 2018, at approximately 9 a.m., § 87(2)(b) heard a knock at her front door. § 87(2)(b) pretended not to be home, but approached the door to see who was there. When she looked through the peephole, she saw two officers, PO Shaheed and PO Martinez, and § 87(2)(b).

§ 87(2)(b) § 87(2)(b) overheard PO Shaheed telling § 87(2)(b) “If you really live here, we have to follow through the procedure, and you would need to get a locksmith to open the door and to make sure you replace the lock the same day. And, if you have your stuff here, I would lock § 87(2)(b) up for illegal eviction.” § 87(2)(b) overheard § 87(2)(b) telling PO Shaheed and PO Martinez that he really lived in the apartment, that § 87(2)(b) had changed the locks, and was now refusing to return his belongings. § 87(2)(b) and the officers left after about 15 minutes without taking further action.

Later in the day of May 19, 2018, § 87(2)(b) received a missed call from an unknown number. On May 20, 2018, at approximately 8:14 a.m., § 87(2)(b) called back and reached PO Shaheed, who had called her from his department-issued cell phone. PO Shaheed asked her to let § 87(2)(b) back into her apartment to retrieve his belongings. § 87(2)(b) refused. § 87(2)(b) also told PO Shaheed that § 87(2)(b) had pretended not to be home on prior occasions when officers had visited the apartment. PO Shaheed told § 87(2)(b) “She § 87(2)(b) § 87(2)(b) could go to jail for that and be charged like an adult.” § 87(2)(b) became upset and terminated the call. There were no witnesses to the call. In initially filing this complaint on May 20, 2018 (BR 00), § 87(2)(b) said that PO Shaheed had also told her that she could be arrested for illegal eviction; however, § 87(2)(b) did not repeat this allegation in her sworn CCRB statement.

§ 87(2)(g) § 87(2)(b) At the beginning of December 2017, § 87(2)(b) rented a room in § 87(2)(b)'s apartment, paying § 87(2)(b) \$200 in cash biweekly as rent. § 87(2)(b) eventually decided that he was not comfortable living in § 87(2)(b)'s apartment, as § 87(2)(b) constantly smoked marijuana, and because § 87(2)(b)'s boyfriend, § 87(2)(b), who frequently stayed in the apartment, was arrested for drugs and gun possession (the investigation confirmed that there was an arrest of an individual named § 87(2)(b), though it could not confirm § 87(2)(b)'s relationship to § 87(2)(b) (BR 04)). § 87(2)(b) announced his intention to leave in early April, though he did not tell § 87(2)(b) when he planned to depart. On April 12, 2018, without warning, § 87(2)(b) changed the locks to her apartment. § 87(2)(b)'s property was still locked inside.

Between April 12, 2018, and May 19, 2018, § 87(2)(b) returned to § 87(2)(b)'s apartment three or four times attempting to retrieve his property. Each time, § 87(2)(b) called 911 to request that the police accompany him, because § 87(2)(b) had threatened to shoot him. Each time, PO Shaheed and PO Martinez responded and knocked on the door, but § 87(2)(b) was not home, and no further action was taken. § 87(2)(b) told the officers that § 87(2)(b) had threatened to shoot him.

On May 19, 2018, at approximately 9 a.m., § 87(2)(b) returned to § 87(2)(b)'s apartment. When PO Shaheed and PO Martinez arrived on this occasion, § 87(2)(b) showed PO Shaheed several electronic bills from Dish network on his cell phone addressed to him at § 87(2)(b)'s address. PO Shaheed told § 87(2)(b) that electronic bills were not enough proof that he had lived there 30 days, and that he had to provide additional evidence. PO Shaheed explained to § 87(2)(b) that § 87(2)(b) could be arrested for illegal eviction if § 87(2)(b) was able to prove that he had resided there and that § 87(2)(b) had locked him out. § 87(2)(b) also provided PO Shaheed with § 87(2)(b)'s phone number.

§ 87(2)(b) provided the investigation with several bills from Dish payable to him which list his address § 87(2)(b) beginning March of 2018 through May of 2018 (BR 05). Aside from these bills, § 87(2)(b) had no other documentation establishing that he had ever resided at the location.

PO Shaheed (BR 06) generally corroborated § 87(2)(b)'s account of events on May 19, 2018, with the following exceptions and additional information. PO Shaheed believed he and PO Martinez had responded to this apartment once previously, but did not remember when or what happened. On the May 19, while they knocked on the door trying to get a response from § 87(2)(b) they saw the building's superintendent performing maintenance work on the second floor. The superintendent confirmed that § 87(2)(b) had lived at the location since December of 2017. PO Shaheed could not recall the name of the superintendent.

PO Shaheed told § 87(2)(b) to resolve the matter in landlord-tenant court, but also told § 87(2)(b) that if he showed officers proof establishing that he had lived there over 30 days, he could then have a locksmith come and give him access to the apartment. He also explained to § 87(2)(b) that § 87(2)(b) could not illegally evict him, and that illegal eviction is an arrest-able offense.

§ 87(2)(b) gave § 87(2)(b)'s phone number to PO Shaheed. On May 19, 2018, PO Shaheed called § 87(2)(b) in hopes of resolving the matter peaceably. On May 20, 2018, § 87(2)(b) called PO Shaheed back. PO Shaheed told § 87(2)(b) what § 87(2)(b) had alleged. § 87(2)(b) confirmed that § 87(2)(b) had resided with her, but said that he moved out voluntarily. § 87(2)(b) also said that she was often not home and did not allow § 87(2)(b) to open the door to anyone in her absence. PO Shaheed explained to § 87(2)(b) that she could not change the locks without warning as § 87(2)(b) alleged, as this was tantamount to illegal eviction, an arrest-able offense. PO Shaheed advised § 87(2)(b) to go to landlord-tenant court. § 87(2)(b) told PO Shaheed that § 87(2)(b) was "not coming back." PO Shaheed then ended the call. PO Shaheed denied ever threatening to arrest § 87(2)(b) and said that refusing to open the door to the police in this context does not constitute a crime.

§ 87(2)(g)
§ 87(2)(b). PO Martinez recalled visiting the location on three or four prior occasions with § 87(2)(b). PO Martinez did not witness PO Shaheed's phone conversation with § 87(2)(b).

NYC Administrative Code § 26-521 Section (a)(3) (BR 08) states that it shall be unlawful for any person to evict or attempt to evict an occupant of a dwelling by means of "engaging or threatening to engage in any other conduct which prevents or is intended to prevent such occupant from the lawful occupancy of such dwelling unit or to induce the occupant to vacate the dwelling unit including, but not limited to, removing the occupant's possessions from the dwelling unit, removing the door at the entrance to the dwelling unit; removing, plugging or otherwise rendering the lock on such entrance door inoperable."

Patrol Guide Procedure 214-12 (BR 09) says that when a uniformed member of service has probable cause to believe that a person has been unlawfully evicted from the dwelling: (1) prepare summons in cases where the violator is properly identified and complaint is permitted to reenter the dwelling; (2) effect an arrest where the violator cannot be properly identified, or refused to permit occupant to re-enter or who through physical obstruction prevents the occupant from re-entering.

It is undisputed that during his visit on May 19, 2018, PO Shaheed discussed with § 87(2)(b) the possibility of arresting § 87(2)(b) § 87(2)(g)

§ 87(2)(g)

It is also undisputed that § 87(2)(b) spoke to PO Shaheed on May 20, 2018 by phone. PO Shaheed said he explained to § 87(2)(b) that illegal eviction is an arrest-able offense. In her sworn CCRB statement, § 87(2)(b) did not describe or allege that PO Shaheed ever made such comments to her. As per PO Shaheed's account, his explanation was not designed to threaten or coerce § 87(2)(b) but was merely informing her of the law; in § 87(2)(b)'s account, no such explanation occurred. § 87(2)(g)

§ 87(2)(g)

As such, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation (B) Abuse of Authority: On June 12, 2018, at § 87(2)(b), in Brooklyn, Sergeant Jeanne Williams damaged § 87(2)(b)'s property.

Allegation (C) Abuse of Authority: On June 12, 2018, Sergeant Jeanne Williams entered § 87(2)(b), in Brooklyn.

Allegation (D) Abuse of Authority: On June 12, 2018, Sergeant Jeanne Williams searched § 87(2)(b), in Brooklyn.

§ 87(2)(g)

On June 12, 2018, § 87(2)(b) contacted the investigation (BR 02). § 87(2)(b) claimed that officers had entered her residence with § 87(2)(b). No one was home at the time of entry, and § 87(2)(b) did not actually witness it; she only knew what happened because the locks of her apartment had been changed when she returned home.

Upon interviewing officers and reviewing police documents, including BWC, the investigation established the following facts:

On June 12, 2018, at 9:18 a.m., PO Shaheed and PO Martinez received a radio call of report of "other crime in progress" at § 87(2)(b) in Brooklyn. The dispatcher informed PO Martinez and PO Shaheed that a tenant, who they eventually identified upon arrival to scene as § 87(2)(b) had called 911 to report that he had been illegally evicted and wanted his property back.

Upon arrival at the location, PO Shaheed and PO Martinez met with § 87(2)(b) in front of the building. § 87(2)(b) was with a locksmith he had hired to open § 87(2)(b)'s apartment to retrieve his property. As discussed above, PO Shaheed and PO Martinez were previously familiar with § 87(2)(b). § 87(2)(b) told the officers he wanted them to accompany him into the apartment for his safety, since was unsure if anyone was home, and feared anyone who was home would assault him upon entry.

PO Shaheed was interviewed twice in relation to the incident on June 12, 2018; once prior to the receipt of BWC, and again after BWC was received. In his first CCRB interview (BR 06), PO Shaheed said that § 87(2)(b) presented the same cable bills he had already shown PO Shaheed and PO Martinez on prior occasions. In his second CCRB interview (BR 15), PO Shaheed said that on June 12, 2018, § 87(2)(b) this time produced a cable bill in his name at the location from December 2017. PO Shaheed also said § 87(2)(b) produced other documentation establishing that he had lived at the location for more than 30 days, but PO Shaheed could not recall what these documents were. PO Shaheed did not mention whether the

superintendent was present on June 12, 2018, in his first CCRB interview, and when asked directly in his second interview, said he did not recall his presence.

PO Shaheed planned to enter the location to protect § 87(2)(b) help him retrieve his property, and ensure that there were witnesses so that § 87(2)(b) could not later accuse § 87(2)(b) of property damage or taking property that did not belong to him. Prior to entering, PO Shaheed requested his supervisor, Sgt. Williams, to the scene to verify that this was the correct course of action.

PO Shaheed could not cite any Patrol Guide section or other rule as a source of his knowledge for how to approach the situation. PO Shaheed approached the situation in a manner he believed was consistent with what he had been taught in his initial Police Academy training.

When Sgt. Williams arrived with her operator, PO Makaida Sealy, PO Shaheed told Sgt. Williams that § 87(2)(b) had illegally evicted § 87(2)(b) that § 87(2)(b) had come to retrieve his property, and that § 87(2)(b) was afraid that occupants of the apartment were going to assault him. § 87(2)(b) then showed the documents he had to Sgt. Williams. Sgt. Williams reviewed them, and then authorized the officers to escort § 87(2)(b) to the apartment.

All officers, § 87(2)(b) and the locksmith then approached the second floor. PO Shaheed knocked on the door of § 87(2)(b)'s apartment and said "Police." There was no response. § 87(2)(b) then asked the locksmith to open the door and the locksmith did so. No officer ordered the locksmith to open the door, nor did any officer try to prevent the locksmith from opening it. There is no specific Patrol Guide section or other rule specifying that a locksmith should be present in these situations, but PO Shaheed thought it was best practice to have a locksmith open the door to minimize damage and to replace the locks immediately.

The officers and § 87(2)(b) entered the apartment once it was open. § 87(2)(b) specifically told the officers they could enter, saying something to the effect of, "Okay, enter." Based upon the documentation § 87(2)(b) showed officers, PO Shaheed believed that § 87(2)(b) was a lawful tenant of the apartment, and had sufficient authority to grant consent.

PO Shaheed also in his first CCRB interview said that once he entered the apartment, he saw a "white powdery" substance spread over the floor by the front door. PO Shaheed described this powder as being "suspicious," but did not believe it was contraband, and thought only that it was placed there to track footsteps through the apartment. In his second CCRB interview, PO Shaheed said he did not notice this until after officers had already been inside the apartment, tracking it around. PO Shaheed made no effort to identify the substance.

The officers entered ahead of § 87(2)(b) as a safety precaution. Once § 87(2)(b) entered, PO Shaheed and other officers followed him to a bedroom he claimed was his. The officers swept through all common areas of the apartment, including the kitchen, living room, bathroom, and opened several large closets to check if anyone was inside. The only area of the apartment officers did not enter was a locked bedroom at the back of the apartment. § 87(2)(b) found a few items of clothing, but told officers that most of his property was missing.

PO Shaheed claimed that Sgt. Williams instructed him to prepare a criminal court complaint against § 87(2)(b) on § 87(2)(b)'s behalf for his missing property, and to prepare a second criminal court complaint for unlawful eviction.

The locksmith placed new locks on § 87(2)(b)'s door. PO Shaheed told § 87(2)(b) to ensure § 87(2)(b) received a copy of the key so that she would not be locked out. PO Shaheed tried to locate the superintendent to give him a copy of the key for § 87(2)(b) but was unable to find him.

PO Shaheed reviewed the BWC footage he recorded of the incident, which shows him moving through the apartment, opening two closets near § 87(2)(b)'s kitchen, and inspecting a cable box § 87(2)(b) said belonged to him. PO Shaheed confirmed he checked these areas of the apartment for safety, and that he looked inside § 87(2)(b)'s cable box to demonstrate for the BWC that the cable box corresponded to the cable bill § 87(2)(b) previously showed him.

PO Martinez was also interviewed twice in relation to this incident (BR 07 and BR 14).

§ 87(2)(g) PO Martinez believed § 87(2)(b) presented bills establishing that he lived at the location for more than 30 days, but did not recall in further detail what § 87(2)(b) presented, saying that PO Shaheed reviewed these documents closely. When Sgt. Williams arrived, PO Shaheed and PO Martinez told her that § 87(2)(b) had been locked out of his apartment for “months,” and that they had responded to the location several times before, as § 87(2)(b) had been persistently trying to get his property back. § 87(2)(b) showed Sgt. Williams several bills, but PO Martinez stepped away and did not hear their conversation or know exactly what § 87(2)(b) showed Sgt. Williams. The building’s superintendent briefly walked past, and PO Shaheed spoke to him; PO Martinez did not know what they spoke about, and the superintendent left. After speaking to § 87(2)(b) for several minutes, Sgt. Williams announced that the officers were going to accompany § 87(2)(b) to his apartment so he could safely retrieve his property, and that he could enter his bedroom at the location but not § 87(2)(b)'s. PO Martinez said that § 87(2)(b) entered the apartment first and the officers followed him. PO Martinez saw a white powdery substance on the floor upon entry, but made no effort to identify it and did not suspect it was contraband or a safety concern. PO Martinez did not remember where he went inside the apartment upon entry, but reviewing the BWC refreshed his recollection. PO Martinez said he only moved through the apartment as part of a safety sweep to ensure no one was hiding.

§ 87(2)(g) Sgt. Williams said the superintendent of the building was present when she arrived. PO Martinez and PO Shaheed explained the situation to Sgt. Williams, but did not specify when § 87(2)(b) locked § 87(2)(b) out, except to say that it had not happened long ago. They also explained that they had responded to the apartment on a date they did not specify, but that § 87(2)(b) did not at that time have documentation proving that he had lived at the location longer than 30 days, and so they had taken no action.

Sgt. Williams then spoke to § 87(2)(b) who showed several cable bills confirming that he had lived in § 87(2)(b)'s apartment for over 30 days. Sgt. Williams did not recall the dates on these bills. § 87(2)(b) also told Sgt. Williams he feared § 87(2)(b) might attack him if he went in to retrieve his property. Sgt. Williams then spoke to the superintendent, who confirmed that § 87(2)(b) had lived in § 87(2)(b)'s apartment.

Sgt. Williams then authorized officers to go in to the apartment to help § 87(2)(b) retrieve his property. Sgt. Williams did so because she wanted § 87(2)(b) to safely retrieve his property. Beyond § 87(2)(b) saying that he feared § 87(2)(b) would attack him, Sgt. Williams had no other reason to believe § 87(2)(b)'s safety was in jeopardy. Sgt. Williams believed § 87(2)(b) was or had recently been a lawful tenant at the location and consented to officers entering, and Sgt. Williams wanted to help him retrieve his property safely. There was no other reason for officers to enter the location.

Upon entry, Sgt. Williams noticed a white powder on the floor in the apartment. § 87(2)(b) made some comment about the white powder, but Sgt. Williams did not recall exactly what he said. Sgt. Williams was not concerned about the substance. The officers swept the

location to ensure no one was inside. § 87(2)(b) found a laundry bag of clothing and a cable box that belonged to him, but said his other property was missing. Sgt. Williams instructed PO Shaheed and PO Martinez to prepare two complaint reports, one for illegal eviction and the other for burglary. Sgt. Williams also told the officers to call the Evidence Crime Team to report the burglary, and to give a copy of the key for the new locks to the superintendent. Sgt. Williams reviewed the BWC footage, and said it was generally consistent with her recollection of events.

PO Sealy (BR 17) provided a statement generally consistent with Sgt. Williams.

PO Shaheed prepared one UF-61 on § 87(2)(b)'s behalf (BR 20). The only crime specified is grand larceny, though the narrative also references § 87(2)(b)'s illegal eviction.

§ 87(2)(a), § 87(2)(b)

§ 87(2)(b)

BWC footage was obtained from PO Shaheed, PO Martinez, Sgt. Williams, and PO Sealy. Two of these videos, one from PO Shaheed (BR 18) and one from PO Martinez (BR 19), are embedded below.



2018-08-14_9-35-38 PO Shaheed BWC 1.mp4



2018-08-14_9-55-43 PO Martinez BWC.mp4

The video from PO Shaheed shows § 87(2)(b) providing paperwork to PO Shaheed, specifically a bill from Amazon, in the lobby of § 87(2)(b)'s building. The bill itself is only partially visible, but at 00:26 seconds, § 87(2)(b) says, "That's from January." PO Shaheed says, "This is a bad copy." § 87(2)(b) then explains that it is a picture of the bill, not the bill itself, and that the original is upstairs. § 87(2)(b) then produces bills from Dish. The dates on these bills are not visible to the camera, and it is unclear if they are the same bills § 87(2)(b) presented to the CCRB. PO Shaheed at 00:58 seconds asks § 87(2)(b) "This is your first time back in a while?" The video ends with officers still in the lobby.

Video from PO Martinez reflects that PO Martinez knocked on § 87(2)(b)'s door. At 00:31 seconds, PO Martinez says, "...She's not opening up." At 00:43 seconds, PO Martinez says, "...She's not opening up so you can just do it. Do this thing." At 00:49 seconds, the locksmith approaches and begins opening the door. At 1:35 minutes, PO Martinez enters the apartment, saying, "Police, anybody home?" At 1:50 minutes, PO Martinez turns to show that other officers have also entered the apartment. The remainder of the video shows § 87(2)(b) and officers moving around various rooms in § 87(2)(b)'s apartment and opening closets. At 2 minutes, § 87(2)(b) says as he walks into a bedroom, "That's my room right here." PO Martinez replies, "It's not your room no more, man." At 3:11 minutes, PO Martinez asks, "You check the closets?" It is unclear to whom PO Martinez directs this question.

Video from Sgt. Williams (BR 22) does not capture the conversation Sgt. Williams described having with § 87(2)(b) or with PO Shaheed and PO Martinez, presumably because she only began recording after these conversations occurred; it begins as officers are walking up to § 87(2)(b)'s apartment. As it depicts the same events as PO Martinez's footage, Sgt. Williams' footage is not separately embedded in this report.

None of the videos document the presence of the superintendent on scene.

Officers entering a residence must possess a warrant. Exceptions to the warrant requirement to enter premises include emergencies, hot pursuit, exigent circumstances, or voluntary consent. People v. Lewis, 94 A.D.2d 44 (1983) (BR 13). A lawful search may be conducted without a warrant where permission to search was obtained from a third party who

possessed common authority over or other sufficient relationship to the premises or effects sought to be inspected. People v. Adams, 53 N.Y.2d 1 (1981) (BR 23).

“Common authority” is not construed in any narrow property law sense, but rather on mutual use of the property by people with joint access or control for most purposes, so that it is reasonable to recognize that any of such persons has the right to permit the inspection in his own right and that the others have assumed the risk that one of their number might permit the common area to be searched. A search will be lawful where the searching officers rely in good faith of the apparent capability of an individual to consent to a search and the circumstances reasonably indicate that that individual does, in fact, have the authority to consent, even if the person does not, in fact, have actual authority. However, the court must find that the officer’s belief was reasonable based on an objective view of the circumstances, and the officer must make some inquiry into the consenting party’s control over the premises or property to be inspected. Moreover, the burden of establishing either actual or apparent authority over the premises or effects sought to be inspected rests upon the State. The burden cannot be met if agents, faced with an ambiguous situation, nevertheless proceed without making further inquiry. The apparent authority of a third party to consent to a search of a suspect’s personal effects must rest upon the police officer’s reasonably held factual interpretation of the circumstances; it cannot be based on a mistaken view of the law. People v. Gonzalez, 88 N.Y.2d 289 (1996) (BR 24)

In People v. Garrett, 258 A.D.2d 530 (1999) (BR 25), a defendant sublet a garage from a prime tenant. When the defendant failed to pay rent, the prime tenant evicted the defendant from the garage by breaking the locks and entering the garage to prepare it to return to the landowner. The police later searched the garage with permission from the prime owner. Because the defendant had previously been evicted, the court held that the defendant’s interest or expectation of privacy in the garage was terminated.

Patrol Guide Procedure 214-13 (BR 26) says that uniformed members of the service should be cognizant that incidents to which they respond may be the outgrowth of a civil process. The authority to break and enter pursuant to purely civil process such as repossessions, evictions, and civil commitments is given to the city marshal/sheriff.

All officers denied explicitly authorizing the locksmith to break the locks. § 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations B, C, and D** be closed as **substantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been a party to one CCRB complaint in which she was the victim of one allegation (BR 10):
 - § 87(2)(b)
- This is first CCRB complaint to which § 87(2)(b) has been a party (BR 13).
- PO Ahmad Shaheed has been a member of service for eleven years and has been a subject in one prior CCRB complaint containing one allegation, which was closed as unsubstantiated. § 87(2)(g)
- Sgt. Jeanne Williams has been a member of service for eight years and has been a subject in two CCRB complaint and three allegations, none of which was closed as substantiated.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- As of July 18, 2018, no Notice of Claim has been filed regarding this incident (BR 11).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date